

24STCV08763 24STCV08763

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCV08763 Hearing Date: June 23, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311 (formerly 19)

Tentative

Ruling

24STCV08763

JOSE

ALEJANDRO RUBIO v. STADCO LA, LLC

June

23, 2026

8:30

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NATURE OF PROCEEDINGS:

DEFENDANTS STADCO LA LLC; STADCO LA, LLC; PINCAY RE, LLC; HOLLYWOOD PARK

MANAGEMENT COMPANY, LLC; HOLLYWOOD PARK MANAGEMENT COMPANY II, LLC'S MOTION FOR

SUMMARY JUDGMENT.

RULING:

The Court grants the

unopposed Motion for Summary Judgment.

I.

BACKGROUND

The

Court incorporates by reference the Background section of the Minutes entered

on March 3, 2026.

On March 18, 2026, STADCO

LA LLC; STADCO LA, LLC; PINCAY RE, LLC; HOLLYWOOD PARK MANAGEMENT COMPANY, LLC;

and HOLLYWOOD PARK MANAGEMENT COMPANY II, LLC (Defendants), filed the Motion for

Summary Judgment, on grounds that there is no admissible evidence supportive of

the Causes of Action for Negligence and Premises

Liability, after conclusive admissions.

Plaintiff has filed no

Opposition.

II.

LEGAL STANDARD

Parties moving for

summary judgment have the initial burden to make a prima facie showing of the

nonexistence of any triable issue of material fact in order to shift the burden

to opposing parties to make a prima facie showing of triable issues of material

fact. (*Kids' Universe v. In2Labs* (2002) 95 Cal. App. 4th 870, 878.)

The function of a motion

for summary judgment or adjudication is to allow a determination as to whether

an opposing party cannot show evidentiary support for a pleading or claim and

to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001)

25 Cal.4th 826, 843.)

"[I]f all the papers

submitted by the parties show there is no triable issue of material fact and

the 'moving party is entitled to a judgment as a matter of law' (Code Civ.

Proc., § 437c, subd. (c)), the court must grant the motion for summary

judgment." (*Troyk v. Farmers Group, Inc.*

(2009) 171 Cal.App.4th 1305, 1320. Accord,

Myers v. Trendwest Resorts, Inc. (2007) 148 Cal.App.4th 1403, 1409.)

III.

ANALYSIS

Defendants maintain the deemed

admissions negate the elements of the subject Causes of Action. (Minutes

entered 2/26/26, 3/5/36, and 3/12/26.)

In order to state and

prove a cause of action for negligence, complainants must allege, and evidence

a legal duty of the defendant to use due care, a breach of it, and the

proximate cause of resulting injury. (E.g., *Bellah*

v. Greenson (1978) 81 Cal.App.3d 614, 619.) “Premises liability is a form

of negligence....” (*Brooks v. Eugene Burger*

Management Corp. (1989) 215 Cal.App.3d 1611, 1619.)

Where

a party never responded to requests for admissions, and never filed a motion

for relief based on mistake, inadvertence or excusable neglect (Code Civ.

Proc., § 2033.280, subd. (a)(2)), an order deeming admitted the requests is

conclusive, and may not be contested with evidence in dispute. (*People v. \$2,709 United States Currency*

(2014) 231 Cal.App.4th 1278, 1285–1286.) “Any matter deemed

to have been admitted ‘is conclusively established against the party making the

admission’....” (*Inzunza v. Naranjo* (2023) 94 Cal.App.5th 736, 742.) “A

trial court must judge whether use of a request for admissions is in conformity with the spirit of the law and serves substantial justice.... When a court is 'troubled' by the way a party has used requests for admission, the court may take corrective action." (LCPFV, LLC v. Somatdary Inc. (2024) 106

Cal.App.5th 743, 755.)

Here, the Motion properly

evidences the admission requests deemed admitted against Plaintiff after multiple failures to respond to the discovery requests and to oppose related Motion.

(Motion, pp. 7-8 (Vicki Greco Declaration).) Those conclusive admissions, in

the context of the absence of opposing proof, are in conformity with the spirit

of the law and in accordance with substantial justice, where the Complainant has

had notice and opportunities to respond to the discovery requests and to oppose

the related Motions.

IV.

CONCLUSION

Accordingly, the Court grants

the Motion, for reasons set forth above.